

Before the Federal Maritime Commission

Washington, DC.

Docket No. 25-08

FormuKleen, Inc.(Complainant)

vs.

Top Shipping Systems, Corp. (Respondent)

Respondent's Motion to Stay or for Clarification of Motion Deadlines Pending CADR Proceedings

Respondent Top Shipping Systems Corp. ("Respondent" or "TSS"), appearing pro se, respectfully requests that the Presiding Officer issue an order either:

1. Staying the deadline to respond to all pending motions filed by Complainant, including the Motion for Interim Relief and renewed Motion for Summary Judgment, until the conclusion of the parties' scheduled Commission-sponsored Collaborative Alternative Dispute Resolution (CADR) session on July 22, 2025; or
2. In the alternative, issuing an order clarifying and consolidating the deadlines for all pending motions, with any response deadlines to begin no earlier than seven (7) business days after CADR concludes.

I. BACKGROUND

1. **On Thursday, July 10, 2025**, Complainant submitted Motion for Interim Relief to Prevent Spoliation and Intimidation
2. **On the same day**, Complainant also filed a Notice of Threatened Spoliation and Witness Intimidation.

3. **On Friday, July 11, 2025**, the Presiding Officer issued an Order Denying Without Prejudice the Motion for Interim Relief.
4. **Later on, July 11, 2025**, Complainant sent a brief and non-specific email indicating an intent to file a motion, with notice provided late in the day prior to the weekend.
5. **On Sunday, July 13, 2025**, Complainant filed a renewed Motion for Interim Relief to Prevent Spoliation and Intimidation, without providing Respondent a fair opportunity to confer in advance.
6. **On Monday, July 14, 2025**, Respondent replied to Complainant's email in an effort to confer and was informed that no motion had yet been filed. However, this representation was misleading, as the renewed Motion for Interim Relief had been filed the day prior, creating confusion as to the status and nature of the filing.
7. **On Tuesday, July 15, 2025**, Complainant filed a Motion for Summary Judgment without conferring, despite previously requesting to confer and failing to engage in further communication.
8. **That same day**, the Presiding Officer denied the Motion for Summary Judgment without prejudice.
9. **On Wednesday, July 16, 2025**, Complainant filed a renewed Motion for Summary Judgment and Statement of Undisputed Material Facts.
10. Complainant issued procedural communications referencing additional potential filings, including a "response" to Respondent's Answer, but did not specify which Answer was being referenced. Complainant stated that the filings were being "tabled," without formally identifying or withdrawing them. The lack of specificity has created confusion as to the nature and status of any intended filings, despite Respondent's efforts to obtain clarification.

11. The parties are scheduled for a CADR session facilitated by the Commission on Tuesday, July 22, 2025.

12. Respondent has made good faith efforts to confer regarding these motions on July 14, 15, and 16, but has received no substantive engagement from Complainant.

II. ARGUMENT

A. A Stay Is Warranted During the Active CADR Process

The Commission has expressed a strong preference for resolving disputes through its Commission-Assisted Dispute Resolution (CADR) process, which is designed to avoid unnecessary litigation where parties are willing to engage in structured mediation.

Continuing with litigation deadlines, including responses to contested and dispositive motions, while the parties are actively engaged in CADR would:

- Undermine the efficiency and purpose of the Commission's ADR framework
- Impose litigation burdens on a pro se Respondent during a time designated for facilitated resolution; and
- Risk rendering any pending motion practice moot should CADR be successful.

Pursuant to 46 C.F.R. § 502.74 and the Commission's inherent authority to regulate its proceedings, the Presiding Officer may stay motion deadlines in the interest of orderly, fair, and efficient case management. A limited stay during the CADR process supports judicial economy and aligns with the Commission's policy favoring alternative dispute resolution.

B. Alternatively, Clarification and Consolidation of Deadlines is Needed

Should the Presiding Officer decline to stay deadlines, Respondent respectfully requests a single, clarified deadline for all currently pending motions. Complainant has filed multiple motions in

rapid succession, with no clear timeline for response or conferral. Without Commission intervention, Respondent faces prejudicial uncertainty and duplicative obligations. Clarification would promote judicial efficiency and ensure that Respondent is not forced to litigate on multiple fronts during CADR.

III. RELIEF REQUESTED

For the foregoing reasons, Respondent respectfully requests that the Commission:

1. Stay all deadlines to respond to Complainant's Motion for Interim Relief, renewed Motion for Summary Judgment, and any other outstanding motions until the conclusion of the parties' CADR session on July 22, 2025; or
2. In the alternative, issue an order clarifying and consolidating all motion response deadlines to begin no earlier than seven (7) business days following the conclusion of CADR.

Respondent thanks the Commission for its attention to this matter and reiterates its commitment to resolving this dispute in good faith.

Exhibit A:

Docket No. 25-08

July 11–16, 2025: Complainant Sends Vague Friday Notice, Files Sunday Without Conferral, Then Admits Lack of Clarity

From: Sara Dandan <sara@fouroneone.io>
Sent: Friday, July 11, 2025 2:49 PM
To: Ricky Villena <ricky.villena@tssc corp.us>; Rachel Villena <rachel.villena@tssc corp.us>
Subject: Duty to confer

Pursuant to 502.71a I am advising you that we are filing a new and revised motion for interim relief. Reply as you wish.

Regards,

Sara Dandan, FourOneOne LLC
Admitted to Practice Before the Federal Maritime Commission

Exhibit A1

From: Sara Dandan <sara@fouroneone.io>
Date: Friday, July 11, 2025 at 4:11 PM
To: Ricky Villena <ricky.villena@tssc corp.us>, Rachel Villena <rachel.villena@tssc corp.us>
Subject: Duty to Confer (Motion to Strike)

Hello,

Pursuant to 46 C.F.R. § 502.71(a), please be advised that Complainant will be filing a Motion to Strike Respondent's Verified Answer in part. You may reply or respond as you deem appropriate.

Regards,

Sara Dandan, FourOneOne LLC
Admitted to Practice Before the Federal Maritime Commission

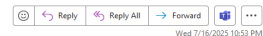
Exhibit A2

Re: Duty to Confer (Motion to Strike)



Sara Dandan <sara@fouroneone.io>
To: Ricky Villena
Cc: Rachel Villena

This message is part of a tracked conversation. Click here to find all related messages or to open the original flagged message.
Click here to download pictures. To help protect your privacy, Outlook prevented automatic download of some pictures in this message.



In light of the motion for summary judgment, Complainant is tabling this for now until the Presiding Officer issues a decision .

Regards,

Sara Dandan, FourOneOne LLC
Admitted to Practice Before the Federal Maritime Commission

Confidentiality

The information contained in this email is confidential and may be privileged. It is intended for the sole use of the addressee(s). If you are not the intended recipient, you are hereby notified that any disclosure, copying, distribution, or use of the information contained in this email is strictly prohibited. You are also notified that any unauthorized use of the information contained in this email may be unlawful. If you have received this email in error or by any other means, please immediately notify the sender by replying to this email and delete this email from your system.

Disclaimer
I am not an attorney. The information provided in this email or any content therein should not be construed as legal advice, practice, or counsel. Any attorneys associated with or employed by FourOneOne, LLC will clearly identify themselves as such in their signatures, title, or other means and will use a distinct email address.

On Mon, Jul 14, 2025 at 9:54 AM Ricky Villena <ricky.villena@tssc corp.us> wrote:

Dear Ms. Dandan,

In light of your indication that the Motion has not been filed, and pursuant to 46 C.F.R. § 502.71(a), we are available to confer in good faith regarding the issues raised in your July 13th communication.

Please let us know your availability to discuss the matter, or if you would prefer to confer by email.

Exhibit A3

Exhibit A (Continued):

Docket No. 25-08

Re: Duty to Confer (Motion for extension of time to answer)



Sara Dandan <sara@fouroneone.io>

To Ricky Villena

Cc Rachel Villena



Reply

Reply All

Forward



Wed 7/16/2025 9:49 PM

Follow up. Start by Thursday, July 17, 2025. Due by Thursday, July 17, 2025.

Hello Ricky,

The “response” I mentioned earlier referred to what I considered to be a potential procedural filing tied to your email regarding the interim relief motion. I was admittedly not clear. However, I don't feel this is necessary at this time anymore. Consider it tabled.

Regards,

Sara Dandan, FourOneOne LLC

Admitted to Practice Before the Federal Maritime Commission

Exhibit A4

This exhibit shows that on Friday, July 11, 2025 at 2:49 PM, Complainant’s Representative emailed Respondent stating she would be filing a revised motion under 46 C.F.R. § 502.71(a).

The message included no draft, no context, and no explanation, and was sent late on a Friday before the weekend. Complainant then filed the motion on Sunday, July 13, without engaging Respondent. Respondent replied first thing Monday morning, July 14, requesting the opportunity to confer in good faith.

Despite multiple follow-up requests, Complainant never provided clarification before filing, and only afterward admitted that she had been “admittedly not clear” in her communication.

This sequence denied Respondent a fair opportunity to confer as required by Commission rules.

Exhibit B: Docket No. 25-08

July 14–16, 2025: Respondent’s Multiple Attempts to Confer Despite Vague and Unfair Communications from Complainant

Duty to Confer (Motion to Strike)

 Ricky Villena

To: Sara Dandan; Rachel Villena

General

This message is part of a tracked conversation. Click here to find all related messages or to open the original flagged message.

Explore sales insights and info from your CRM with Copilot. See sales insights

Start your reply all with:

Thank you for your response. Understood. Thank you. Thank you for the clarification. Feedback

Dear Sara,

Thank you for your message.

We note that no context was provided in your email regarding the grounds for the proposed motion, and that it was sent after hours on a Friday, with the motion then filed over the weekend. This timing did not provide us with a meaningful opportunity to confer in good faith as required.

That said, we remain open to further discussion and will continue to comply with all Commission procedures moving forward.

Best Regards,

Exhibit B1

Re: Duty to Confer (Motion to Strike)

 Ricky Villena

To: Sara Dandan; Cc: Rachel Villena

General

Follow up. Start by Monday, July 14, 2025. Due by Monday, July 14, 2025. This message is part of a tracked conversation. Click here to find all related messages or to open the original flagged message.

Dear Ms. Dandan,

In light of your indication that the Motion has not been filed, and pursuant to 46 C.F.R. § 502.71(a), we are available to confer in good faith regarding the issues raised in your July 13th communication.

Please let us know your availability to discuss the matter, or if you would prefer to confer by email.

Respectfully,

Exhibit B2

Exhibit B (continued)

Docket No. 25-08

July 15-July 16th 2025: Respondent's Multiple Attempts to Confer Despite Vague and Unfair Communications from Complainant

RE: Duty to confer

 Ricky Villena
To:  Sara Dandan;  Rachel Villena
General

  Reply  Reply All  Forward    Tue 7/15/2025 4:59 PM

Hello Sara,

We are kindly requesting your availability again to confer pursuant to 46 C.F.R. § 502.71(a). As we would like the opportunity to clarify the points raised.

Please let us know your availability to discuss the matter, or if you would prefer to confer by email.

Best Regards,



Ricky Villena
Vice President
TSS Corp | CHB • FTZ • CFS • Distribution
12480 NW 25th St, Suite 100, Miami, FL 33182
Cell: (786) 367-2008
Tel: (305) 639-3401 ext. 124
Fax: (305) 677-8030
Email: Ricky.villena@tsscorp.us
www.tsscorp.us

Exhibit B3

RE: Duty to Confer (Motion for extension of time to answer)

 Ricky Villena
To:  Sara Dandan;  Rachel Villena
General

  Reply  Reply All  Forward    Wed 7/16/2025 4:01 PM

Dear Ms. Dandan,

Could you please clarify what “response to your answer” you are referring to? To our understanding, a Verified Answer does not require a response unless leave is granted by the Commission. If you are referencing another filing, we would appreciate clarification.

We also want to note that for every motion Complainant has filed, Respondent has made multiple efforts to confer in good faith on July 14, 15, and again today, July 16.

Additionally, to our understanding, summary judgment is typically addressed after the parties complete CADR and factual development not before. We were surprised by its filing at this early stage and would have appreciated the opportunity to discuss it prior to submission.

We are not interested in going back and forth over procedural misunderstandings. Our goal is to resolve this matter constructively, and we remain available to confer at any time.

Best Regards,

Exhibit B4

July 16, 2025 – Complainant’s Refusal to Engage in Meaningful Conference

Re: Duty to Confer (Motion for extension of time to answer)



Sara Dandan <sara@fouroneone.io>

To: Ricky Villena

Cc: Rachel Villena

You forwarded this message on 7/16/2025 7:42 PM.



Wed 7/16/2025 6:37 PM

Hello Ricky,

I've satisfied my obligation to confer under the Commission's Rules by notifying you of the relief I intend to seek and offering you the opportunity to state your position. The duty to confer does not require me to explain the rules, justify my motion, or engage in further discussion beyond that notice.

If you wish to oppose the motion, you are free to do so. I will be filing it accordingly.

Regards,

Sara Dandan, FourOneOne LLC

Admitted to Practice Before the Federal Maritime Commission

This email from Complainant's representative, sent on July 16, 2025 at 6:37 PM, asserts that her duty to confer under 46 C.F.R. § 502.71(a) was satisfied merely by notifying Respondent of the intended relief without offering any explanation, context, or draft of the filing.

This position was taken after multiple documented efforts by Respondent to engage in a meaningful, good-faith conference, including written requests on July 14, 15, and 16, specifically asking for clarity and a chance to confer.

Despite this, Complainant sent brief, non-substantive emails including on the weekend and proceeded to file motions before normal business hours resumed, depriving Respondent of a meaningful opportunity to understand or respond. Complainant's rigid interpretation of "duty to confer" does not reflect the cooperative intent of the rule, and a genuine opportunity to confer was never provided.

Respectfully submitted,

Top Shipping Systems Corp.

12480 NW 25th St., Suite 100

Miami, FL 33182

Ricky Villena

Vice President, pro se

Email: ricky.villena@tsscorp.us

Phone: (305) 639-3401

Dated: July 17, 2025

CERTIFICATE OF SERVICE

I hereby certify that on July 17, 2025, a true and correct copy of the Respondent's Motion to Stay or for Clarification of Motion Deadlines Pending CADR Proceedings was served via electronic mail upon the following representative of record for the Complainant:

Sara Dandan

FourOneOne LLC

Phone: 630-286-9846

Email: sara@fouroneone.io

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Representative for Complainant FormuKleen, Inc